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Arapahoe Charter School

Vendor IFB/Contract

Terms and Conditions

August 1, 2026 – June 30, 2027

USDA NON-DISCRIMINATION STATEMENT

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Persons with disabilities who require alternative means of communication for program information (e.g., Braille, large print, audiotape, American Sign Language, etc.) should contact the responsible Agency or USDA's TARGET Center at (202) 720-2600 (voice and TTY) or contact USDA through the Federal Relay Service at (800) 877-8339. Additionally, program information may be made available in languages other than English.

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General Terms and Conditions

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1.0 Scope and Purpose

The Arapahoe Charter School (herein after referred to as the School) request to receive bids from an offering entity, (herein after referred to as Vendor), to order, warehouse, and deliver food and supplies for use in the School's Child Nutrition Program.

2.0 Contract Period

Unless renewed or extended by mutual agreement of both parties, the contract time period will begin on August 1, 2025 and end on June 30, 2026.

3.0 Renewal Procedures

The School reserves the right to renew the agreement for a period not to exceed four (4) additional terms of (1) year each with mutual agreement of both parties concerning the following: (a) Product Price – For any renewal, the Vendor will shop the market for the best pricing for ALL pre-approved products on the School's new-year product spreadsheet. Vendors will provide a price for one item for each specification on the new-year School specification bid spreadsheet. (b) In addition, Vendor will provide notification of any increase in delivery fees.

4.0 Date, Time and Location of Bid Opening

All bids must be enclosed in a sealed envelope marked "FOOD SERVICE BID" in the lower left corner and delivered to Arapahoe Charter School Child Nutrition Program, Attention: Marianne Bruno, 9005 NC HWY 306 S., Arapahoe, NC 28510.

Bids must be received on or before April 13th, 2026. The bid opening will be conducted on April 17th, 2026 at 2 p.m. in the office of the School Child Nutrition Manager.

5.0 Bid Award

The School Child Nutrition Manager will notify Vendor of bid award within five (5) business days of the bid opening, on or before April 24th, 2025.



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6.0 Delivery Schedule

The school is open for deliveries Monday - Friday between the hours of 6 am and 2 pm. Vendors must provide 24 hours notice to the Child Nutrition Manager for deliveries arriving outside of the scheduled delivery window.

7.0 Bid Requirements

Bids must be submitted on the enclosed form. The bidder shall retain a copy and return the original copy as their official bid. The person authorized to bind the Vendor must also sign the enclosed contract agreement.

The bid award will be based on the bottom line best price for the estimated quantities to be ordered, product quality, product compliance with USDA standards, and level of service.

Perishable items must be delivered fresh and in a condition acceptable to the Child Nutrition Manager.

The Child Nutrition Manager or their designee must sign all invoices or delivery slips at the time of delivery. Unsigned invoices will not be paid.

All monthly statements are to be issued to include and end with the cut-off-date as the last day of the month. The statements are to be sent to the Accounts Payable, 9005 NC HWY 306 S., Arapahoe, NC 28510.

The Arapahoe Charter School Board of Directors reserves the right to reject all bids.

8.0 Product Quality, Product Specifications and Recourse for Misrepresentation

All food products supplied by the Vendor awarded the Contract will comply with Standards of Identity, Quality and Fill as described in 21 CFR Part 100 of the Food, Drug and Cosmetic Act regulations.

Vendor will provide product specifications and nutrition information for any manufacturer, private label, or vendor private label within ten working days of the Schools request.

The School has automatic product protection recourse against suppliers for products that are misrepresented. According to Federal regulations, the supplier whose name and address appears on the package is the responsible party. The Vendor awarded this Contract is expected to take immediate action to correct any situation in which product integrity is violated.



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9.0 Substitution and Discontinued Product Requirements

The Vendor awarded the contract shall order goods from manufacturers in economical quantities and maintain inventories at a sufficient level to prevent out of stock situations; while avoiding excessive inventories which may be counter-productive to product conditions. Product substitutions due to out of stock situations should be held to an absolute minimum. Vendor “out of stock” percentage is expected at 3% of invoice orders or less. Excessive substitution may jeopardize future business from the School District or invoke Termination Proceedings.

To facilitate delivery schedules and provide appropriate substitutions in out of stock situations for accommodation of students with food allergies, the awarded Vendor MUST e-mail or fax the school district, for pre-approval by the Child Nutrition Manager, current specification sheets with ingredient lists, nutritional analysis and allergens for each proposed substitution a minimum of 24 HOURS IN ADVANCE of the delivery. The Vendor may substitute pre-approved brands within a specification without supplying product specifications, but 24 HOURS ADVANCE notification of substitution is still required. The Vendor and/or manufacturer is responsible for any damages to costumers due to unidentified allergens from products substituted for brands pre-approved by this contract. Any substitution for a bid specification product brought in by the Vendor to alleviate out of stock situations must be (1) of the same or higher quality as the regular stock, (2) the same or lower portion cost than regular stock and (3) priced at the same flat fixed-rate fee per case as the original product.

10.0 Remedies for Non-Performance of Contract and Termination

If the Vendor cannot comply with the terms and conditions in fulfilling its contract as anticipated, the Vendor must supply the same products or services contracted from other sources at the contract price. The Vendor’s delay in the above will constitute the Vendor’s material breach of contract, whereupon the School may terminate the Vendor’s contact for cause as provided by the remainder of this section.

Unless this Contract is extended by mutual agreement of the parties beyond the expiration of the contract time period as stated on the Bid Certification, this Contract shall terminate upon the expiration of the contract term as stated on the Bid Certification.

Except as otherwise provided within the General Terms and Conditions of this document, this Contract may be terminated in whole or in part by either party in the event of substantial failure by the other party to fulfill its obligations under this contract through no fault of the terminating party; provided that no such termination may be implemented unless and until the other party is given (1) at least thirty (30) days written notice (delivered by certified mail, return receipt requested) of intent to terminate, and (2) an opportunity for consultation with the terminating party, followed by a reasonable opportunity, of not more than ten (10) working days, to rectify the defects in products or performance, prior to termination.



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Valid causes for termination of this Contract will include, but are not limited to:

1. The Vendor's failure to adhere to any of the provisions of the General Terms and Conditions of this IFB.
2. The Vendor delivering any product(s) that fail to meet the item specifications included in this IFB relating to the awarded product(s).
3. The Vendor delivering any substitution(s) of product(s) different than those originally proposed and awarded without the prior written approval of the School.
4. The Vendor's failure to meet the required delivery schedule as agreed upon with the School Child Nutrition Manager.
5. The Vendor's violation of any other provision contained within these General Terms and Conditions or any attachment thereto which provides for contract termination as a remedy.

Notwithstanding anything contained in this section, in the event of the Vendor's breach of any provision in this contract, the School reserves the right to enforce the performance of this contract in any manner prescribed by law or deemed to be in its best interest including but not limited to, the purchase of other products of like type and quality from other sources in the open market.

In the event the SFA terminates the Contract, in whole or in part, for any reason provided for within the contract, the School reserves the right to award the canceled contract, or any portion thereof, to the next lowest or most responsible bidder.

11.0 Statement of Assurances

By signing this bid, the Vendor assures that:

1. Neither the Vendor nor any business entity represented by the Vendor has received compensation for participation in the preparation of the items specifications or the General Terms and Conditions related to this IFB/contract.



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2. This bid has been arrived at independently and is submitted without collusion with any other Vendor, with any competitor or potential competitor, or with any other person or entity to obtain any information or gain any special treatment or favoritism that would in any way limit competition or give any Vendor an unfair advantage over any other Vendor with respect to this IFB/contract.
3. The Vendor has not accepted, offered, conferred or agreed to confer, and will not in the future accept, offer, confer, or agree to confer any benefit or anything of value to any person or entity related to the School or any of its members in connection with any information or submission related to this bid, any recommendations, decisions, vote or award related to this bid, or the exercise of any influence or discretion concerning the sale, delivery, or performance of any product or service related to this bid.
4. Neither the Vendor, nor any business entity represented by the bidder, nor anyone acting for such business entity, has violated the Federal Antitrust Laws or the antitrust laws of the state of North Carolina with regard to this bid, and this bid has not been knowingly disclosed, and will not be knowingly disclosed to another Vendor, competitor, or potential competitor prior to the opening of bids.
5. No attempt has been made or will be made to induce any other person or entity to submit or not submit a bid.
6. Vendor assures that positive efforts will be made to involve minority and small business.
7. Vendor assures that purchase incentives will be returned to the School's non-profit Child Nutrition account.
8. Vendor assures compliance with Executive Order 11246 "Equal Employment Opportunity" as amended by Executive Order 11375 and as supplemented in the Department of Labor regulations required for all contracts over \$10,000.00.
9. Vendor assures that access will be granted to duly authorized representatives of the School Food Authority, State Agency, United States Department of Agriculture, or Comptroller General to any books, documents, papers, and records of the contractor that are directly pertinent to all negotiated contracts.
10. Vendor agrees to maintain all required records for three (3) years after final payment and all other pending matters are closed for all negotiated contracts.



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11. Vendor agrees to recognize mandatory standards and policies related to energy efficiency which are contained in the State Energy Plan issued in compliance with the Energy Policy and Conservation Act (PL 94-165).

12. The Distributor shall comply with the following civil rights laws as amended: Title VI of the Civil Rights Act of 1964; Title IX of the Education Amendments of 1972; Section 504 of the Rehabilitation Act of 1973; the Age Discrimination Act of 1975; Title 7 CFR parts 15, 15a, and 15b; the Americans with Disabilities Act; and FNS Instruction 113-6, “Civil Rights Compliance and Enforcement in School Nutrition Programs”.

12.0 Protest Procedure

Protests of awards exceeding \$10,000 in value must be submitted to the issuing Agency at the address given in the letterhead of this document. Protests must be received in this office within 10 calendar days from the date of the Contract award and provide specific reasons and any supporting documentation for the protest.

A representative of the Vendor who is authorized to enter into contracts on behalf of the offering entity must sign the proposal. The person signing the proposal must indicate his/her title along with signature. Proposals received without proper signature will not be considered.

13.0 Firm Fixed Fee Bid Procedure

- 13.1 **Firm Fixed Fee** – The Fixed Fee is charged “per case” and shall encompass the costs of the product’s receipt into storage, distribution, financing and profit, production losses, analyses cost, waste, labor, overhead, and transportation costs of the line items bid in Lots 1-4 and when requested, Lot 1A
- 13.2 The Fixed Fee shall remain **firm for the duration** of the Contract, and for the duration of any Summer Nutrition Programs offered by the School and any future Contract renewal period(s). Exceptions: Fuel Increase Force Majeure
- 13.3 The Fixed Fee will be the **same for ALL** items in an individual lot for the pack size shown on the bid spreadsheet, EXCEPT for **Lot 4 Produce. Produce: Fixed Fee Splits** – Vendors should calculate the cost of case splits into the fixed fee structure as requested by the School. **The fixed fee for “splits” is divided by the fraction of a case provided** – i.e. a half case is the full fixed fee x .50; a quarter case is the full fixed fee x .25, etc. The Vendor shall indicate the splits they will provide by checking the box provided on



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the line item of products that may be split. The total fixed fee shall encompass the potential splits required by the school district.

- 13.4 Fixed Fee and Product Substitution:** In the event of a product substitution, the Fixed Fee charged by the Vendor shall also apply to all other pre-approved brands in that specification and any optional brand priced or offered by the Vendor and approved by the School for that bid specification.

14.0 Force Majeure Procedures

- 14.1** The party seeking relief due to Force Majeure will be required to promptly notify the Child Nutrition Manager, Marianne Bruno, marianne.bruno@arapahoecharter.org, in writing, citing the details of the Force Majeure event, including documentation, and request Board of Directors approval of the Force Majeure. If approved, the Vendor will be notified via a signed Force Majeure Request Form.
- 14.2** The term Force Majeure shall include, but is not limited to, governmental restraints or decrees, provided they affect all companies in the Vendor's industry equally and are not actions taken solely against the Awarded Vendor, acts of God (except natural phenomena, such as rain, wind or flood, which are normally expected in the locale in which performance is to take place); work stoppages due to labor disputes or strikes; fires; explosions; epidemics; riots; war; rebellion; or sabotage.
- 14.3** The parties to this Contract will be required to use due caution and preventative measures to protect against the effects of Force Majeure, and the burden of proving that Force Majeure has occurred shall rest on the party seeking relief under this section. They will be required to use due diligence to overcome obstacles to performance created by the Force Majeure event, and shall resume performance immediately after the obstacles have been removed, provided the Contract has not been terminated in the interim.
- 14.4** Delay or failure of performance, by either party to this contract, caused solely by the Force Majeure event shall be executed for the period of delay caused solely by the Force Majeure event, provided the affected party has promptly notified the other party in writing. Neither party shall have any claim for damages against the other resulting from delays caused solely by Force Majeure.
- 14.5** The School will not be responsible for any costs incurred by the Vendor because of the Force Majeure event unless the School has requested, in writing, that the Vendor incur such costs in connection with any delay or work stoppage caused by the Force Majeure, and the School has agreed in writing to incur such additional costs.
- 14.6** Notwithstanding any other provision of this section, in the event the Vendor's performance of its obligations under this contract is delayed or stopped by a Force Majeure event, the School shall have the option to terminate this contract in accordance with the General Terms and Conditions document entitled "Remedies for



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Non-Performance of Contract, and Contract Termination.” Furthermore, this section shall not be interpreted as to limit or otherwise modify any of the School’s rights as provided elsewhere in this contract.

15.0 Escalation/De-escalation clause – Milk and Dairy Product Bid

All prices shall be firm for thirty (30) days, after which prices for milk can escalate or de-escalate in accordance with changes in class I raw milk prices based on monthly Federal Milk Order announcements for the applicable geographical zone. Prices for milk delivered can be escalated or de-escalated at the rate of \$0.001 per half-pint. Any changes (up or down) in price must be announced to the Child Nutrition Manager by the 15th of the month proceeding the month in which the change will occur. A copy of the Federal Milk Order must accompany any price changes. Suppliers are also requested to submit conversion calculations showing the manner of arriving at the amount of change.

16.0 Buy American Provision

The Vendor shall comply with the “Buy American” provision for Contracts that involve the purchase of agricultural products. Federal regulations require that all foods (ingredients) purchased for Child Nutrition Programs be of domestic origin to the maximum extent practicable. While rare, two (2) exceptions exist:

1. Exceptions to the Buy American provision are possible when the product is not produced or manufactured in the U.S. in sufficient, reasonable and available quantities of satisfactory quality; and competitive Bids reveal the cost of a domestic product is significantly higher than a non-domestic product or;
2. Product(s) may qualify under the Richard B. Russell National School Lunch Act’s Buy American provision for purchasing food and food products used in Child Nutrition Programs which states that products are acceptable provided over 51% of the final processed product(s) consist of agricultural commodities that are of US origin.

17.0 No Indebtedness

It is expressly agreed by the Vendor that pursuant to N.C. Gen. Stat. 115C-238.29H (al), that no indebtedness of any kind incurred or created by the Vendor shall constitute an indebtedness of the State or its political subdivisions and no indebtedness of the Vendor shall involve or be secured by the faith, credit or taxing power of the State or its political subdivisions.

18.0 Jessica Lunsford Act



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The Vendor shall conduct, pursuant to N.C. Gen. Statute 115C-332.1, an annual check of each of its employees, subcontractors, agents, and other representatives on the State Sex Offender and Public Protection Registration Program, the State Sexually Violent Predator Registration Program, and the National Sex Offender Registry if such employee, subcontractor, agent, or other representative will be on the Governmental Unit's property pursuant to this contract. The Vendor shall conduct this check on each of its employees, subcontractors, agents, and other representatives prior to permitting such employee, subcontractor, agent or other representative to perform work under this Contract or enter the Governmental Unit's school campus site or other school property.

19.0 Debarment Certification

- (1) The prospective primary participant certifies to the best of its knowledge and belief, that it and its principals:
 - (a) Are not presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from covered transactions by any Federal department or agency;
 - (b) have not within a three-year period preceding this bid been convicted of or had a civic judgment rendered against them for commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State or local) transaction or contract under a public transaction; violation of Federal or State antitrust statutes or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, or receiving stolen property;
 - (c) are not presently indicted for or otherwise criminally or civilly charged by a governmental entity (Federal, State or local) with commission of any of the offenses enumerated in paragraph (1) (b) of this certification; and
 - (d) have not within three-year period preceding this application/bid had one or more public transactions (Federal, State or Local) terminated for cause or default.
- (2) Where the prospective primary participant is unable to certify to any of the statements in this certification, such prospective participant shall attach an explanation to this bid.

20.0 Certificate of Lobbying

The undersigned certifies, to the best of his or her knowledge and belief, that:

- (1) No federal appropriated funds have been paid or will be paid, by or on behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, the making of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal contract, grant, loan, or cooperative agreement.



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- (2) If any funds other than Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this Federal contract, grant, loan or cooperative agreement, the undersigned shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying", in accordance with its instructions.
- (3) The undersigned shall require that the language of this certification be included in the award documents for all sub-awards at all tiers (including sub-contracts, sub-grants and contracts under grants, loans and cooperative agreements) and that all sub-recipients shall certify and disclose accordingly.

This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into this transaction imposed by section 1352, title 31 U.S. Code. Any person who fails to file the required certification shall be subject to a civil penalty of not less than \$10,000 and not more than \$100,000 for each such failure

21.0 Clean Air and Clean Water Act

The contractor and SFA mutually agree to comply with all applicable standards, orders or requirements issued pursuant to Section 306 of the Clean Air Act (42 USC 1857 [h]), Section 508 of the Clean Water Act (33 USC 1368), Executive Order 117389 and Environmental Protection Agency regulations (40 CFR Part 15). Any violations thereof shall be reported to the Administrator for Enforcement or other appropriate authority. Each party shall not be responsible to the other for acts beyond its control or acts caused by the negligence of the other party. 15, 15a, and 15b; the Americans with Disabilities Act; and FNS Instruction 113-6, "Civil Rights Compliance and Enforcement in School Nutrition Programs".

22.0 Iran Divestment Act

The contractor shall comply with the Iran Divestment Act and Divestment from Companies Boycotting Israel. No contract may be entered into with a restricted company as listed by the State Treasurer in accordance with N.C.G.S. Chapter 147, Articles 6E or 6G, except as permitted by those laws. By entering into this contract ("Contract") and providing materials, equipment or services described in the Contract (the "Work"), Contractor acknowledges and represents that it is not a restricted company as defined in N.C.G.S. Chapter 147, Articles 6E or 6G

23.0 Original Signature



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Vendors must **return all properly signed original documents** in the required format as described in the proposal response. Vendors should retain photocopies for their files. Any change made to any written response on any of the proposal documents must be made by marking through the original entry and entering the new information alongside the change. Changes should not be made with correction fluid. All changes must be “initialed” by the person making the change, and the name of the person who initialed the change must be noted in a footnote on the same page containing the correction. **Failure to return any document or information requested as part of the proposal response will result in rejection of the entire proposal**

24. Attachments

- A. N.C. Gen. Stat. 115C-238.29H(al)**
- B. Jessica Lunsford Act**
- C. Debarment Certification**
- D. Certificate of Lobbying**
- E. HUB Certification**



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Attachment A.

N.C. Gen. Stat. 115C-238.29H (al)

It is expressly agreed by _____ and the client that pursuant to N.C. Gen. Stat. 115C-238.29H (al), that no indebtedness of any kind incurred or created by the client shall constitute an indebtedness of the State or its political subdivisions and no indebtedness of the client shall involve or be secured by the faith, credit or taxing power of the State or its political subdivisions.

Company Name

Signature of Authorized Representative

Date

Attachment B.

Jessica Lunsford Act

_____ shall conduct, pursuant to N.C. Gen. Statute 115C-332.1, an annual check of each of its employees, subcontractors, agents, and other representatives on the State Sex Offender and Public Protection Registration Program, the State Sexually Violent Predator Registration Program, and the National Sex Offender Registry if such employee, subcontractor, agent, or other representative will be on the Governmental Unit's property pursuant to this contract. The client shall conduct this check on each of its employees, subcontractors, agents, and other representatives prior to permitting such employee,



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subcontractor, agent or other representative to perform work under this Contract or enter the Governmental Unit's school campus site or other school property."

Company Name

Signature of Authorized Representative
Attachment C.

Date

Debarment Certification

- (3) The prospective primary participant certifies to the best of its knowledge and belief, that it and its principals:
- (a) Are not presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from covered transactions by any Federal department or agency;
 - (b) have not within a three-year period preceding this bid been convicted of or had a civic judgment rendered against them for commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State or local) transaction or contract under a public transaction; violation of Federal or State antitrust statutes or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, or receiving stolen property;
 - (c) are not presently indicted for or otherwise criminally or civilly charged by a governmental entity (Federal, State or local) with commission of any of the offenses enumerated in paragraph (1) (b) of this certification; and
 - (d) have not within three-year period preceding this application/bid had one or more public transactions (Federal, State or Local) terminated for cause or default.
- (4) Where the prospective primary participant is unable to certify to any of the statements in this certification, such prospective participant shall attach an explanation to this bid.

Company Name



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Signature of Authorized Representative

Date

Attachment D.

Certificate of Lobbying

The undersigned certifies, to the best of his or her knowledge and belief, that:

- (4) No federal appropriated funds have been paid or will be paid, by or behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, the making of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal contract, grant, loan, or cooperative agreement.
- (5) If any funds other than Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this Federal contract, grant, loan or cooperative agreement, the undersigned shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying", in accordance with its instructions.
- (6) The undersigned shall require that the language of this certification be included in the award documents for all sub-awards at all tiers (including sub-contracts, sub-grants and contracts under grants, loans and cooperative agreements) and that all sub-recipients shall certify and disclose accordingly.

This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into this transaction imposed by section 1352, title 31 U.S. Code. Any person who fails to file the required certification shall be subject to a civil penalty of not less than \$10,000 and not more than \$100,000 for each such failure.



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Company Name

Signature of Authorized Representative

Date

Attachment E.

HUB Certification

Historically Underutilized Business (HUB) Certification

Companies submitting Bids that have been certified by the North Carolina Department of Administration as Historically Underutilized Business (HUB)
Entities are encouraged to indicate their HUB status when responding to this IFB.

Mark YES or NO with an “X” as applicable and sign below.

- ☐ **Yes**, I certify that my company has been certified by the North Carolina Department of Administration as Historically Underutilized Business, (HUB), and I have attached a copy of our HUB certification to this form. Required documentation for recognition as a HUB:

Check all that apply:

- ☐ Minority
- ☐ Small Business
- ☐ Women Owned

- ☐ **No**, I certify that my company does not qualify for HUB status.

Company Name



9005 Hwy. 306S • Arapahoe • NC • 28510 • www.arapahoecharter.org • 252.249.2599 (phone) • 252.249.1316 (fax)

Signature of Authorized Representative

Date

25.0 Contract Agreement Signature Page

We have carefully examined and fully understand the **GENERAL TERMS AND CONDITIONS** in furnishing the Arapahoe Charter School Board of Directors bid prices for items requested.

In compliance with the bids awards and subject to all terms and conditions listed on the **GENERAL TERMS AND CONDITIONS**, the undersigned offers and agrees to sell to the Arapahoe Charter School Board of Directors all items as quoted. It is understood that all prices quoted include any delivery changes and are subject to finance charges.

COMPANY NAME

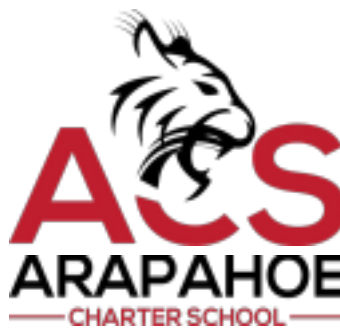
SIGNATURE OF AUTHORIZED REPRESENTATIVE

ADDRESS

CITY, STATE, ZIP CODE

DATE

TELEPHONE



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CHILD NUTRITION ADMINISTRATOR

DATE